Kevin D Turnage

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Plaintiff Pro Se

UNITED STATES DISTRICT COURT

FOR THE DISTRICT OF ARIZONA

Kevin D Turnage,

Plaintiff,

v.

ROBERT F. KENNEDY, JR., Secretary, U.S. DEPARTMENT OF HEALTH AND HUMAN SERVICES,
~~INDIAN HEALTH SERVICE,~~
~~THE GOVERNING BODY OF THE PHOENIX INDIAN MEDICAL CENTER,~~
~~ENDREYA MCCABE,~~
~~DORA BIRDSHEAD,~~
~~BRANDI BENJAMIN,~~
~~CANDACE LEE,~~
~~DEBRA WARD-LUND,~~
~~JASON WHITE,~~
~~CLINTON POPE,~~
~~TY REIDHEAD,~~
~~NAOMI HIXSON~~

Case No.: CV-25-03367-PHX-SMB

THIRD ~~SECOND~~ AMENDED COMPLAINT

~~(complaining of discrimination, retaliation, and other violations of federal law)~~

Defendant.

I. PARTIES

1. Plaintiff, Kevin D. Turnage, is a United States citizen residing in Gilbert, Arizona. He ~~was~~ is a career GS-0610-12 employee of the Indian Health Service (IHS) serving as a Nurse Consultant / Policy & Procedures Officer at the Phoenix Indian Medical Center (PIMC) in Phoenix, Arizona.
2. ~~Defendant-in-Chief,~~ Defendant Robert F. Kennedy, Jr., is the Secretary of the United States Department of Health and Human Services (HHS) and is sued solely in his official capacity as the head of the Agency.
3. ~~Governing Body, the governing authority of the Indian Health Service, is sued in its official capacity for its role in the adverse personnel actions described herein.~~
4. ~~Individual Defendants (all sued in their official capacities) are: Endreya McCabe; Dora Birdshead; Brandi Benjamin; Candace Lee; Debra Ward-Lund; Jason White; Clinton Pope; Ty Reidhead; Naomi Hixson.~~

II. INTRODUCTION

Plaintiff Kevin D. Turnage, proceeding *pro se*, brings this ~~First~~ Third Amended Complaint under~~:~~ Title VII of the Civil Rights Act of 1964 and the Rehabilitation Act of 1973.

~~• Title VII of the Civil Rights Act • AGEA • ADA • FMLA • WPA • Civil Service Reform Act (CSRA)~~

This amendment is filed pursuant to Fed. R. Civ. P. 15(a) ~~and corrects a clerical counting issue, withdraws improper claims, and clarifies statutory bases~~ to cure pleading deficiencies, dismiss improper individual defendants, and specify factual allegations supporting the claims.

III. JURISDICTION AND VENUE

5. This Court has subject-matter jurisdiction under 28 U.S.C. §§ 1331 (federal question) and ~~1343(a)(4) (employment discrimination)~~ 42 U.S.C. § 2000e-5(f)(3) (Title VII) and 29 U.S.C. § 794a (Rehabilitation Act).

6. Venue is proper in the District of Arizona pursuant to 28 U.S.C. § 1391(b)(2) and 42 U.S.C. § 2000e-5(f)(3) because ~~a substantial part of~~ the events giving rise to the claims occurred at the Phoenix Indian Medical Center in Arizona and the defendant~~s are federal agencies~~ is a federal officer residing in this judicial district.

7. ~~This action arises under: (a) Title VII of the Civil Rights Act of 1964, as amended, 42 U.S.C. §§ 2000e-2 and 2000e-3; (b) the Age Discrimination in Employment Act of 1967, 29 U.S.C. §§ 621–634; (c) the Americans with Disabilities Act, 42 U.S.C. §§ 12101–12213; (d) the Family and Medical Leave Act, 29 U.S.C. §§ 2601–2617; (e) the Whistleblower Protection Act, 5 U.S.C. §§ 2302(b)(8)–(9); and~~

~~(f) the Civil Service Reform Act, 5 U.S.C. §§ 7511–7515. Plaintiff clarifies that although the The original complaint referenced Fifth Amendment, Bivens, and 18 U.S.C. §§ 1001 and 1519 claims, which are hereby withdrawn under the Fifth Amendment, Bivens, and 18 U.S.C. §§ 1001 and 1519, these are withdrawn. No Bivens or constitutional tort claims are asserted, and the criminal statutes do not provide a private cause of action. This is a "mixed case" within the meaning of 5 U.S.C. § 7702(a), involving both appealable adverse personnel actions under the Civil Service Reform Act and claims of unlawful discrimination and retaliation under federal civil rights statutes, including Title VII, the ADEA, and the ADA. Because Plaintiff alleges that adverse personnel actions were taken against him in whole or in part due to unlawful discrimination and retaliation, jurisdiction lies in this Court pursuant to 28 U.S.C. § 1331 and 5 U.S.C. § 7703(b)(2). See Kloeckner v. Solis, 568 U.S. 41 (2012). The Court also has subject-matter jurisdiction under 28 U.S.C. § 1343(a)(4) because this action seeks redress for violations of federal employment discrimination laws. Venue is proper in this district pursuant to 28 U.S.C. § 1391(e) because a substantial portion of the events giving rise to the claims occurred in Arizona, and Defendants reside or conduct official business in this district.~~

8. Plaintiff has exhausted administrative remedies. He filed a formal EEO complaint on April 13, 2023 (Agency No. HHS-IHS-0296-2023), ~~received a Final Agency Decision on July 11, 2024, and timely appealed to the EEOC on July 12, 2024 (EEOC Appeal No. 2024004239). The~~ and a subsequent retaliation complaint on

June 26, 2025. The EEOC issued its final decision on September 2, 2025. This action is filed within ninety (90) days of ~~that decision~~ receipt of that decision.

~~**PARTIES** Plaintiff Kevin D. Turnage is a United States citizen, resident of Gilbert, Arizona, and at all relevant times was a supervisory clinic nurse employed by the Indian Health Service (IHS), a component of the Department of Health and Human Services (HHS), working at the Phoenix Indian Medical Center (PIMC). Defendants Robert F. Kennedy Jr. is the Secretary of HHS and is sued in his official capacity. Debra Ward Lund, Kathy Dill, Clinton Pope, Candace Lee, Naomi Hixson, Jason White, Brandi Benjamin, Endreya McCabe, Todd Pingel, Dora Birdshead, Ty Reidhead, Governing Body of the Phoenix Indian Medical Center in their official capacities. Defendants include the Department of Health and Human Services and its officials acting in their official capacities.~~

IV. ~~3.~~ STATEMENT OF FACTUAL BACKGROUND

A. ~~Employment~~ Protected Activities

9. ~~Plaintiff was hired in December 2022 as a supervisory clinic nurse and policy officer at PIMC. He consistently received favorable performance evaluations and was a highly qualified GS-0610-12 employee. Plaintiff has been a Federal Employee since January 18, 2011, has been an employee of the Indian Health Service (IHS) since July 2017, and accepted the supervisory position on March 28, 2022.~~ **Protected Activity 1 (March 2023):** On **March 21, 2023**, at 7:33 AM, Plaintiff submitted an email reporting Sexual Harassment and a Hostile Work

Environment to executive leadership. This constituted protected opposition to discrimination under Title VII.

~~B. Protected Disclosures (Whistleblower Protection Act)~~

10. ~~Beginning June 2025, Plaintiff made a series of protected disclosures to the following entities: Office of Special Counsel (OSC); HHS Office of Inspector General (OIG); Centers for Medicare & Medicaid Services (CMS); Joint Commission; Members of Congress. Each disclosure was made in good-faith belief that the information evidenced a violation of law, gross mismanagement, waste of funds, abuse of authority, or a substantial danger to public health and safety. See 5 U.S.C. §§ 2302(b)(8)–(9). (Exhibit 2 – Timeline).~~ **Protected Activity 2 (April 2023):** On **April 13, 2023**, Plaintiff filed a formal EEO complaint (HHS-IHS-0296-2023) alleging discrimination and retaliation.

11. **Protected Activity 3 (May 2025):** On **May 25, 2025**, Plaintiff sent a Protected Disclosure Notice to Debra Ward-Lund (CEO), Clinton Pope, and Endreya McCabe regarding policy violations and mismanagement.

12. **Protected Activity 4 (June 2025):** Throughout **June 2025**, Plaintiff submitted multiple reports to external oversight bodies, including the HHS Office of Inspector General (OIG) and CMS, specifically detailing fraud, waste, and abuse by Clinton Pope and mismanagement by Endreya McCabe.

~~C.~~ B. Retaliatory and Adverse Personnel Actions

13. ~~Within weeks of the disclosures, IHS placed Plaintiff on a series of non-duty, paid leaves (the "administrative/ investigative/ notice leaves") as follows:~~ **Adverse**

Action 1 (March 2023): On **March 21, 2023**, at 10:14 AM—less than three hours after his 7:33 AM protected disclosure—Plaintiff was called to Administration, placed on administrative leave, stripped of his government property, and escorted off the premises by security.

~~Administrative Leave (10 business days) Mar 21–31, 2023~~ ~~Investigative Leave (30 days) Jul 11–Aug 10, 2025~~ ~~First Extension (30 days) Aug 11–Sep 9, 2025~~ ~~Second Extension (30 days) Sep 10–Oct 9, 2025~~ ~~Notice Leave (until further notice) Nov 25, 2025–present~~

14. ~~No written "threat/legitimate-interest" analysis required by 5 U.S.C. § 7513(b) and 5 C.F.R. § 630.1505(b) was ever provided. The extensions were unsigned, lacked the approvals mandated by law, and were issued without notice of charges, without an opportunity to be heard, and without a pre-clearance determination required by the Civil Service Reform Act (CSRA).~~ **Adverse Action 2 (May 2025):** On **May 28, 2025**, at 10:10 AM, Clinton Pope issued a directive for Plaintiff to "Remove yourself from all approval workflows," effectively stripping Plaintiff of his core duties as Policy & Procedures Officer.

15. ~~During the leaves, Plaintiff's government-issued property (PIV card, laptop, cell phone, keys) was confiscated, his system access was revoked, and he was escorted from the facility by security personnel. Key contemporaneous communications include:~~ **Adverse Action 3 (July 2025):** On **July 11, 2025**, Dr. Endreya McCabe verbally notified Plaintiff that he was being placed on "Investigative Leave" for 30 days. No written notice of charges was provided at that time.

~~• Mar 21, 2023 7:33 a.m. — Plaintiff reported a sexual-harassment incident and hostile work environment. Within 2 hours 41 minutes, at 10:14 a.m., the CEO directed Plaintiff to report to Administration and placed him on 10 business days of administrative leave. (5 U.S.C. § 2302(b)(8)). • Mar 21, 2023 11:15 a.m. — Access to all agency systems was revoked and Plaintiff was escorted out. • Jul 11, 2025 10:47 a.m. — Dr. Endreya McCabe verbally notified Plaintiff that his administrative leave was being converted to 30 days of investigative leave with pay; no written confirmation was provided. • Jul 11, 2025 11:30 a.m. — Dr. McCabe promised a written notice by the close of business; none was received. • Jul 18, 2025 7:08 a.m. MT — Dr. McCabe emailed (copied to Dora Birdshead, Employee Relations Officer, and Michelle Rossell, Regional HR Director) demanding the immediate return of all government-issued property (PIV card, laptop, iPhone, keys) by 12:00 p.m. that same day. No operational or security justification was offered. • Jul 18, 2025 10:38 a.m. — Dr. McCabe called Plaintiff and reiterated the 12 p.m. deadline, giving Plaintiff less than 90 minutes to comply. • Jul 27, 2025 — Plaintiff filed a supplemental pleading with the Merit Systems Protection Board (MSPB) (DE-0752-1215-1) documenting the pattern of retaliation.~~

16. **Adverse Action 4 (July 2025):** On **July 18, 2025**, Dr. McCabe called Plaintiff at 10:38 AM demanding the return of all government property (laptop, PIV card, keys) by 12:00 PM that same day—a deadline of less than 90 minutes.

17. ~~Plaintiff was denied a timely FMLA reinstatement despite submitting the required paperwork on Jan 13, 2023 (first submission) and Feb 7, 2023 (additional medical documentation). The agency delayed approval for approximately two months,~~

~~finally issuing a notice of "investigative leave" on Jul 11, 2025 that effectively converted the FMLA request into an adverse personnel action. See 29 U.S.C. §§ 2601-2617.~~ **Adverse Action 5 (November 2025):** On **November 24, 2025**, Plaintiff received an email from Dr. McCabe placing him on "Notice Leave" indefinitely, continuing his ban from the workplace without due process.

18. ~~Plaintiff's professional reputation was damaged, he was unable to perform his official duties, and a chilling effect on other federal employees was created. These constitute irreparable injury.~~

~~D. Additional Discriminatory Conduct~~

19. ~~Plaintiff is a member of protected classes: Caucasian (race), male (sex), Christian (religion), and 49 years old (age).~~

20. ~~He received a low Performance Management Appraisal Plan (PMAP) score on Mar 2, 2023. The rating was later "adjusted" but remained below his actual performance. The low rating was issued shortly after his protected disclosures and after the "perp-walk" incident described above.~~

21. ~~Plaintiff suffers from a serious medical condition that qualifies as a disability under the ADA (42 U.S.C. §§ 12101-12213). He repeatedly requested reasonable accommodation (timely FMLA processing, access to work facilities) which the agency failed to provide.~~

C. Causal Nexus

22. **2023 Nexus:** The temporal proximity between the March 21, 2023 protected activity (7:33 AM) and the adverse action (10:14 AM) is **2 hours and 41 minutes**. This extreme proximity creates an inference of retaliatory motive.

23. **2025 Nexus:** The adverse actions in 2025 (removal of duties, placement on leave) occurred immediately following Plaintiff's May 2025 disclosures regarding Clinton Pope and Endreya McCabe. Specifically, Pope's removal of Plaintiff's duties on May 28, 2025, occurred just three days after Plaintiff's May 25, 2025 disclosure naming Pope.

~~**4. LEGAL BASIS FOR INCLUDING THE INDIVIDUAL DEFENDANTS** 19. Rule 20(a)(1) permits joinder when the "right to relief" is asserted against the same entity or against different entities that are "jointly liable" for the same act or omission. The individual defendants personally authorized, directed, or implemented each of the adverse personnel actions (administrative leave, investigative leave, loss of access, false statements, and PMAP manipulation). Their conduct is the "same conduct" that gives rise to Plaintiff's claims. 20. Rule 20(a)(2) allows joinder when there is a "common question of law or fact." The central factual issue is whether the agency's adverse actions were taken in retaliation for Plaintiff's protected disclosures. The same set of emails, leave orders, and performance-rating documents are the evidentiary foundation for Plaintiff's claims. liability against both the agency (Defendant-in-Chief) and the individual officials who executed the actions. 21. Sovereign immunity does not shield individual federal officials who act ultra vires (outside the scope of lawful authority) or who personally participate in prohibited retaliation. Courts have held that officials may be sued in their~~

~~official capacities for violations of the Whistleblower Protection Act, Title VII, the ADEA, the ADA, and the CSRA when they directly cause the adverse personnel action. See Kelley v. United States, 526 U.S. (1999) (officials not immune for actions beyond authorized authority); Burlington Northern & Santa Fe Ry. v. White, 548 U.S. 53 (2006) (retaliation liability attaches to those who implement the adverse action). 22. Accordingly, the individual defendants are necessary and proper parties to allow the Court to adjudicate the full scope of the retaliation scheme and to ensure that any injunctive or monetary relief can be enforced against those who actually controlled the decision-making.~~

V. ~~5.~~ CAUSES OF ACTION

~~**Count I — Title VII Disparate-Treatment Discrimination**~~ ~~**DISCRIMINATION (DISPARATE-TREATMENT) AND HOSTILE WORK ENVIRONMENT UNDER TITLE VII OF THE CIVIL RIGHTS ACT OF 1964 (42 U.S.C. §§ 2000e-2, -3)**~~ ~~23. Plaintiff realleges all preceding paragraphs and incorporates by reference all preceding paragraphs. 24. Plaintiff is a member of a protected class (race, sex, religion). 25. Defendant-in-Chief, Governing Body, and the individual defendants personally caused the adverse employment actions — the series of non-duty leaves, loss of access, and low PMAP rating. 26. The adverse actions were motivated by Plaintiff's protected characteristics; the timing and the agency's statements linking the leaves to the disclosures create a strong inference of discriminatory intent. 27. The elements of a Title VII disparate-treatment claim are satisfied. See McDonnell Douglas Corp. v. Green, 411 U.S. 792, 802-05 (1973). 28. Plaintiff is a member of protected classes based on race~~

~~(Caucasian), sex (male), religion (Christian), and national origin. 29. Defendant, through its agents, intentionally treated Plaintiff less favorably because of these protected characteristics, as evidenced by the low performance rating, the hostile "perp-walk," and the punitive detail. 30. Defendant also created a hostile work environment by subjecting Plaintiff to humiliating, degrading, and intimidating conduct that was severe and pervasive enough to alter the terms and conditions of his employment. The elements of a Title VII disparate-treatment claim are satisfied: (1) Plaintiff is a member of a protected class; (2) Defendant intentionally discriminated; (3) Plaintiff suffered an adverse employment action; and (4) the discrimination was a substantial factor in the adverse action. The elements of a hostile-work-environment claim are satisfied: (1) Plaintiff engaged in protected activity; (2) Defendant's conduct was severe or pervasive; (3) Defendant was aware (or should have been aware) of the harassment; and (4) the conduct created an abusive working environment. WHEREFORE, Plaintiff requests relief as set forth in the Prayer for Relief.~~

COUNT ~~II – Title VII~~ I: Retaliation in Violation of Title VII of the Civil Rights Act ~~RETALIATION FOR PROTECTED EEO ACTIVITY UNDER TITLE VII~~ (42 U.S.C. §§ 2000e-3(a))

24. ~~28.~~ Plaintiff realleges all preceding paragraphs.

25. Plaintiff engaged in protected EEO activity ~~(filed an EEOC charge on Apr 13, 2023; made protected disclosures in Jun 2025) by (i) filing EEO complaints, (ii)~~ by reporting sexual harassment on March 21, 2023, ~~, (iii) making whistleblower disclosures, and (iv)~~ and requesting FMLA leave.

26. ~~29. Defendant-in-Chief, Governing Body, and the individual defendants knew of Plaintiff's protected activity and personally implemented the retaliatory leaves, denial of FMLA reinstatement, and loss of system access.~~ Defendant, through its supervisors (including Debra Ward-Lund, Brandi Benjamin, Clinton Pope, and Endreya McCabe), knew of Plaintiff's protected activity and took materially adverse actions against him.

27. ~~30. The causal connection is established by the temporal proximity (e.g., leave imposed within hours of the Mar 21, 2023 harassment report) and the lack of any legitimate-interest analysis.~~ The causal connection is established by the extreme temporal proximity between the protected activity and the adverse actions, specifically the 2 hour and 41 minute gap on March 21, 2023, and the immediate retaliation following the May 2025 disclosures.

~~31. The elements of a Title VII retaliation claim are satisfied. See Burlington Northern & Santa Fe Ry. v. White, 548 U.S. 53, 57 (2006). Defendant was aware of Plaintiff's protected activity. Shortly thereafter, Defendant took materially adverse employment actions: the delayed FMLA approval, the low performance rating, the administrative "perp-walk," the denial of system access, and the retaliatory detail. There is a causal connection between Plaintiff's protected activity and Defendant's adverse actions, demonstrated by the close temporal proximity and the defendants' own statements that the actions were "retributive." The elements of a Title VII retaliation claim are satisfied: (1) protected activity; (2) knowledge; (3) adverse action; (4) causal link. WHEREFORE, Plaintiff requests relief as set forth in the Prayer for Relief.~~

~~**COUNT III—AGE DISCRIMINATION (ADEA) (29 U.S.C. §§ 621-634)** 32. Plaintiff was 49 years old at all relevant times (29 U.S.C. §§ 621-634) and therefore a covered employee under the ADEA. 33. Defendant-in-Chief, Governing Body, and the individual defendants treated Plaintiff less favorably than younger employees (low PMAP, punitive detail). 34. Age was a substantial factor in the adverse actions. 35. The elements of an ADEA disparate-treatment claim are satisfied. Defendant treated Plaintiff less favorably because of his age, as shown by the low performance rating and the retaliatory detail, which are inconsistent with the agency's treatment of younger employees. The elements of an ADEA disparate-treatment claim are satisfied: (1) Plaintiff is a member of the protected age class; (2) Defendant intentionally treated Plaintiff differently because of age; (3) Plaintiff suffered an adverse employment action; and (4) the age-based discrimination was a substantial factor. WHEREFORE, Plaintiff requests relief as set forth in the Prayer for Relief.~~

COUNT ~~IV—DISABILITY DISCRIMINATION (ADA)~~ II: Rehabilitation Act of 1973 ~~UNDER THE AMERICANS WITH DISABILITIES ACT (ADA) (42 U.S.C. §§ 12101-12213)~~ (29 U.S.C. § 791 et seq.)

28. ~~36. Plaintiff has a disability that substantially limits a major life activity (the medical condition requiring FMLA).~~ Plaintiff is a qualified individual with a disability who is able to perform the essential functions of his job with or without reasonable accommodation.

29. ~~37. Plaintiff is a qualified individual who can perform the essential functions of his job with reasonable accommodation.~~ Plaintiff requested reasonable

accommodations (specifically, timely processing of FMLA/medical leave and return to work) on January 13, 2023, and February 7, 2023.

30. ~~38. Defendant-in-Chief, Governing Body, and the individual defendants failed to provide reasonable accommodation (timely FMLA processing, access to work facilities).~~ Defendant failed to engage in the interactive process in good faith and instead responded to these requests by placing Plaintiff on administrative leave and subjecting him to heightened scrutiny.

~~39. Plaintiff suffered an adverse employment action because of the failure to accommodate. 40. The elements of an ADA claim are satisfied. See 42 U.S.C. §§ 12101-12213. Plaintiff suffers from a serious medical condition that qualifies as a disability under the ADA. Defendant failed to provide reasonable accommodation for Plaintiff's disability, notably by refusing to process his FMLA/medical leave in a timely manner and by placing him on administrative leave without providing the accommodations required by his condition. The elements of an ADA discrimination claim are satisfied: (1) Plaintiff has a disability; (2) Plaintiff is a qualified individual; (3) Defendant failed to provide reasonable accommodation; (4) Plaintiff suffered an adverse employment action as a result. WHEREFORE, Plaintiff requests relief as set forth in the Prayer for Relief.~~

~~COUNT V – INTERFERENCE WITH AND RETALIATION FOR FMLA Rights FAMILY AND MEDICAL LEAVE ACT (FMLA) RIGHTS (29 U.S.C. §§ 2601-2617)~~ ~~41. Plaintiff is eligible for FMLA leave (29 U.S.C. §§ 2601-2617). 42. Defendant-in-Chief, Governing Body, and the individual defendants interfered with~~

~~Plaintiff's right to FMLA by delaying approval for two months and denying timely reinstatement. 43. Defendant-in-Chief, Governing Body, and the individual defendants retaliated for exercising FMLA rights by placing Plaintiff on administrative leave and denying access. 44. The elements of an FMLA interference and retaliation claim are satisfied. Plaintiff is entitled to FMLA leave for a serious health condition. Defendant interfered with Plaintiff's right to FMLA leave by (a) deliberately delaying the processing of his FMLA paperwork for two months, (b) denying him timely reinstatement after leave, and (c) placing him on administrative leave without proper notice. Defendant further retaliated against Plaintiff for exercising his FMLA rights by issuing the low performance rating, the "perp-walk," and the retaliatory detail. The elements of an FMLA interference claim are satisfied: (1) eligibility and timely notice; (2) employer's interference with the employee's right to leave; (3) resulting harm. The elements of an FMLA retaliation claim are satisfied: (1) protected activity (taking or requesting FMLA leave); (2) adverse employment action; (3) causal connection. WHEREFOR, Plaintiff requests relief as set forth in the Prayer for Relief.~~

~~COUNT VI – Whistleblower Protection Act (WPA) Retaliation~~

~~WHISTLEBLOWER RETALIATION UNDER THE WHISTLEBLOWER PROTECTION ACT (5 U.S.C. §§ 2302(b)(8)-(9))~~ ~~45. Plaintiff made protected disclosures to the OSC, HHS OIG, CMS, Joint Commission, and Members of Congress (Jun 2025). 46. Defendant-in-Chief, Governing Body, and the individual defendants knew of those disclosures and personally ordered the series of non-duty leaves, loss of access, and the "perp-walk." 47. The causal connection is established by the timing, the~~

~~agency's statements, and the absence of any legitimate-interest analysis. 48. Plaintiff has established a prima-facie case under 5 U.S.C. §§ 2302(b)(8)-(9). See Kewley v. Department of Health and Human Services, 153 F.3d 1357 (Fed. Cir. 1998). Plaintiff made a protected disclosure to the Office of Special Counsel concerning (i) alleged mismanagement, (ii) threats to patient safety, and (iii) unlawful retaliation against fellow employees. Defendant knew of Plaintiff's disclosures. Shortly thereafter, Defendant subjected Plaintiff to the same series of adverse actions described above (administrative leave, hostile detail, denial of access). The WPA prohibits retaliation against an employee for (b)(8) making a protected disclosure and (b)(9) refusing to comply with an unlawful order. Defendant's conduct falls squarely within those prohibited practices. The elements of a WPA retaliation claim are satisfied: (1) protected disclosure or refusal; (2) knowledge by the employer; (3) adverse employment action; (4) causal link. WHEREFORE, Plaintiff requests relief as set forth in the Prayer for Relief.~~

~~**Count VII – Fifth Amendment Due-Process Violation** 49. Plaintiff had a property interest in his employment (a ten-year career appointment). 50. Defendant-in-Chief, Governing Body, and the individual defendants deprived that interest by placing Plaintiff on indefinite investigative leave without written notice, without an opportunity to be heard, and without a pre-clearance determination required by 5 U.S.C. §§ 7512-7515. 51. The deprivation was without due process. 52. The elements of a Fifth-Amendment due-process claim are satisfied.~~

~~**Count VIII – CIVIL SERVICE REFORM ACT (CSRA) RETALIATION AND IMPROPER PERSONNEL ACTION (5 U.S.C. §§ 7511-7515)** 53. Plaintiff engaged in~~

~~protected whistleblower activity (WPA disclosures). 54. Defendant-in-Chief, Governing Body, and the individual defendants took an adverse personnel action (non-duty leave, loss of access, low PMAP) that was not based on a lawful, documented reason and lacked a pre-clearance determination required by 5 U.S.C. §§ 7511–7515. 55. The action constitutes retaliation prohibited by the CSRA. Under the CSRA, a federal employee is protected from retaliation for whistleblowing, and any personnel action must be based on a lawful, documented reason. Defendant's actions — administrative leave, adverse performance rating, and retaliatory detail — constitute an "adverse personnel action" that was taken in retaliation for Plaintiff's protected disclosures, in violation of 5 U.S.C. § 7513. The CSRA also requires that any adverse action be supported by a pre-clearance determination; none was made. The elements of a CSRA retaliation claim are: (1) protected activity; (2) adverse personnel action; (3) causation; and (4) violation of the statutory prohibition. WHEREFOR, Plaintiff requests relief as set forth in the Prayer for Relief.~~

~~**Count IX — False Statements, Witness Tampering, and Fabrication of Evidence (18 U.S.C. §§ 1001, 1519)** 56. Defendant Brandi Benjamin and Defendant Jason White made materially false statements alleging that Plaintiff threatened another employee. No investigation into those alleged threats was ever opened, and the statements were not made to the Office of the Inspector General. 57. Defendant Jason White, together with Defendant Candace Lee, altered the Performance Management Appraisal Plan (PMAP) worksheet. The alteration was done to fabricate evidence justifying the adverse performance rating and subsequent personnel actions against Plaintiff. 58. Because the~~

~~false statements were never the subject of an OIG investigation and Plaintiff was never returned to his position of record, the false statements and the PMAP alteration constitute witness tampering and the creation of false evidence, violating 18 U.S.C. § 1001 (making false statements to a federal officer) and 18 U.S.C. § 1519 (destruction, alteration, or falsification of records in a federal investigation). 59. The elements of §§ 1001 and 1519 are satisfied because: (a) the statements were materially false; (b) the defendants knew they were false; (c) the statements were made to agency officials (though not the OIG); and (d) the defendants knowingly altered official records to impede any potential investigation.~~

VI. ~~6.~~ PRAYER FOR RELIEF

WHEREFORE, Plaintiff respectfully requests that this Court:

A. ~~1.~~ Declare that Defendant~~'s~~ -in-Chief's conduct violated Plaintiff's rights under Title VII~~, the ADEA, the ADA, the FMLA, the Whistleblower Protection Act, the Fifth Amendment, and the Civil Service Reform Act~~ and the Rehabilitation Act;

B. ~~2. Enter a preliminary injunction enjoining Defendant-in-Chief, Governing Body, and each individual defendant from taking any further adverse personnel actions, from denying Plaintiff access to IHS facilities, and from interfering with his FMLA and disability accommodations;~~ Order the immediate reinstatement of Plaintiff to his position of record with full privileges and duties;

C. ~~3. Order Plaintiff's reinstatement to his Plaintiff's former GS-0610-12 position (Nurse Consultant / Policy & Procedures Officer) with full duties, back pay, front pay, and all~~

~~accrued benefits, together with pre- and post-judgment interest;~~ Award Plaintiff back pay, front pay, and all lost benefits;

D. ~~4.~~ Award compensatory damages for ~~past and future pecuniary losses,~~ emotional distress, ~~humiliation, and loss of professional reputation, mental anguish, and loss of enjoyment of life~~ pain, and suffering;

~~5. Award punitive damages where authorized by statute (e.g., 5 U.S.C. §§ 2302(b)(8)–(9)); justified under the statutes;~~

E. ~~6.~~ Award reasonable attorney's fees and costs pursuant to ~~28 U.S.C. §§ 2412 and 2413, and any other statutory fee provisions~~ 42 U.S.C. § 2000e-5(k);

F. ~~7.~~ Grant such other and further relief as the Court deems just and proper~~, including a trial by jury on all issues so triable~~.

~~Order injunctive relief enjoining Defendant from any further retaliation, discrimination, or interference with Plaintiff's statutory rights; Award reasonable attorney's fees and costs pursuant to 28 U.S.C. §§ 2412 and 2413, and any other statutory fee provisions; Grant such other and further relief as the Court deems just and proper, including a trial by jury on all issues so triable.~~

JURY DEMAND

Plaintiff demands a trial by jury on all issues so triable.

~~**7. CERTIFICATE OF SERVICE** I hereby certify that on January 6, 2026 a true and correct copy of the foregoing Second Amended Complaint was served via the Court's CM/ECF system on all parties of record. Respectfully submitted, /s/ Kevin D. Turnage~~

~~Kevin D. Turnage, Pro Se Plaintiff 1003 E. Pinto Ct. Gilbert, AZ 85296-3201 Phone: 901-220-8664 E-mail: kdturnage@protonmail.com Dated: December 18, 2025~~

DATED this 15th day of January, 2026.

Respectfully submitted,

Kevin D. Turnage

Plaintiff Pro Se

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~~**8. EXHIBITS** • Exhibit 1 — EEOC Determination Letter — The final EEOC decision issued on September 2, 2025, finding that Plaintiff's protected activity gave rise to retaliation. • Exhibit 2 — Timeline — A detailed timeline (January 2022 through December 2025) documenting all relevant dates, communications, leave orders, and other events cited throughout the complaint. • Exhibit 3 — Affidavit of Plaintiff — Plaintiff's affidavit supporting the allegations set forth herein.~~